

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ADRIAN RIVERA,

Index No.: 806788/2024E

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK CITY POLICE OFFICER
G. GOMEZ, in his individual and official capacities,
NEW YORK CITY POLICE OFFICER JOHN DOES #1-
10 (fictitiously named) in their individual and official
capacities,

Defendants.

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Plaintiff, ADRIAN RIVERA, by his attorneys, THE RUSSELL FRIEDMAN LAW GROUP, LLP, complaining of Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY POLICE OFFICER G. GOMEZ, in his individual and official capacities, and NEW YORK CITY POLICE OFFICER JOHN DOES #1-10 (fictitiously named) in their individual and official capacities (hereinafter, collectively referred to as “Defendants”), respectfully alleges as follows:

NATURE OF ACTION

1. This is an action for deprivation of Plaintiff’s civil rights, committed by Defendants while acting in concert and under color of state law, of Plaintiff’s rights, liberties, and immunities as guaranteed to him by reason of the Fourth and Fourteenth Amendments to the United States Constitution. This Court is authorized to grant Plaintiff relief under 42 U.S.C. §§ 1983 and 1988.

JURISDICTION

2. This Court has jurisdiction as the causes of action alleged herein arose in the City and State of New York.

VENUE

3. Pursuant to CPLR § 503(a), venue is proper in this Court as Plaintiff is a resident of the County of Bronx.

PARTIES

4. Plaintiff ADRIAN RIVERA (hereinafter, referred to as “RIVERA” or “Plaintiff”) is a resident of the State of New York, who lives within the County of Bronx.

5. Defendant CITY OF NEW YORK (hereinafter, referred to as “CITY”) is a municipal subdivision of the State of New York, duly existing by reason of and pursuant to the laws of the State of New York.

6. Upon information and belief, at all relevant times described herein, Defendant CITY, by its agents and/or employees, operated, maintained, and controlled the NEW YORK CITY POLICE DEPARTMENT.

7. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter, referred to as “NYPD”) is a subdivision and/or agency of Defendant CITY.

8. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY POLICE OFFICER G. GOMEZ (hereinafter, referred to as “GOMEZ”) is a police officer who is being sued in his/her individual and official capacity and is an employee of

Defendants CITY and NYPD. At all relevant times described herein, G. GOMEZ was acting under color of state law within the scope of his/her employment as a police officer employed by Defendants CITY and NYPD, and works under the supervision, direction, and/or control of his/her supervisors in the NYPD.

9. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY POLICE OFFICER JOHN DOES #1-10 (hereinafter, referred to as “PO JOHN DOES”) are police officers who are yet unknown and are being sued in their individual and official capacities and are employees of Defendants CITY and NYPD. At all relevant times described herein, PO JOHN DOES were acting under color of state law within the scope of their employment as police officers employed by Defendants CITY and NYPD, and work under the supervision, direction, and/or control of their supervisors in the NYPD.

FACTUAL ALLEGATIONS

10. On or about April 27, 2021, RIVERA was lawfully present at the Mobile Gas Station located at 150 West 145th Street, New York, New York.

11. While present at the aforementioned location at approximately 3:27 A.M., RIVERA was stopped by New York City Police Officers GOMEZ and/or PO JOHN DOES, without probable cause or reason to believe an infraction has been committed.

12. GOMEZ and/or PO JOHN DOES unlawfully detained RIVERA without probable cause or reasonable suspicion that an infraction had been committed by RIVERA.

13. Then GOMEZ and/or PO JOHN DOES unlawfully issued RIVERA six (6) tickets for offenses that GOMEZ and/or PO JOHN DOES knew RIVERA did not commit.

14. In effectuating the detainment, GOMEZ and/or PO JOHN DOES were acting under the color of law.

15. There was no legitimate basis and/or lawful authority for the detainment of RIVERA nor the issuance of the traffic tickets.

16. RIVERA was deprived of his liberty, caused to suffer economic hardship, mental anguish, pain and suffering, exposed to disgrace, public humiliation, and embarrassment.

17. The above conduct has been and is known to CITY. Despite this knowledge, CITY has failed to take any action.

AS AND FOR PLAINTIFF'S FIRST CAUSE OF ACTION
FOR FOURTH AND FOURTEENTH AMENDMENT VIOLATIONS
UNLAWFUL DETAINMENT, EQUAL PROTECTION, AND DUE PROCESS
42 U.S.C. § 1983 AGAINST DEFENDANTS GOMEZ AND PO JOHN DOES

18. RIVERA repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

19. Defendants GOMEZ and PO JOHN DOES, acting under color of law, violated the Fourth and Fourteenth Amendments by subjecting RIVERA to unequal treatment under the law, by way of their unauthorized and unlawful detainment, and GOMEZ and PO JOHN DOES' improper and wrongful detainment was without any violation of the law and absent probable cause or any reasonable suspicion of any criminal activity having been committed by RIVERA.

20. On or about April 27, 2021, RIVERA was falsely seized and falsely detained, deprived of his freedom, subjected to humiliation and ridicule, and unlawfully imprisoned by Defendants in violation of the civil and Constitutional rights afforded to him via the Fourth Amendment and the Due Process Clauses of the Fourteenth Amendment of the United States

Constitution, as well as 42 U.S.C. § 1983. All acts by Defendants were committed under color of law, thus depriving RIVERA of rights secured by federal law and the United States Constitution.

21. On or about April 27, 2021, Defendants GOMEZ and/or PO JOHN DOES falsely seized and falsely detained RIVERA, thus depriving him of his freedom and violating his civil rights. Said seizure was made without probable cause, as GOMEZ and/or PO JOHN DOES were of the knowledge that RIVERA had committed no crime.

22. Such seizure and detention were ordered, directed, and carried out by GOMEZ and/or PO JOHN DOES, all of whom actively instigated and encouraged the violation of RIVERA'S rights.

23. As part of the unlawful seizure and detention, Defendants GOMEZ and/or PO JOHN DOES caused RIVERA to be deprived of his liberty, without probable cause. Furthermore, as a direct result of said actions, RIVERA was unjustly exposed to disgrace, public humiliation, injury, and embarrassment.

24. Defendants GOMEZ and/or PO JOHN DOES individually and collectively knew at the time of RIVERA'S detainment, and at all times since then, that there was no evidence to support any allegation that he had violated any law.

25. In arresting and detaining RIVERA, Defendants GOMEZ and/or PO JOHN DOES knew or should have known that they were violating federal law and RIVERA'S Constitutional rights set forth herein and had failed to prevent same and, therefore, acted in concert to harm RIVERA.

26. Defendants GOMEZ and/or PO JOHN DOES, separately and in concert, acted outside the scope of their jurisdiction and without authorization of law and each of Defendants GOMEZ and/or PO JOHN DOES, separately and in concert, acted willfully, knowingly, and

purposefully with the specific intent to deprive RIVERA of his right to freedom from illegal seizure of his person, freedom from illegal detention and imprisonment – all rights that are secured to RIVERA by the Fourth Amendment, the due process clause of the Fourteenth Amendment of the United States Constitution, and by 42 U.S.C. § 1983.

27. As a direct and proximate result of the aforesaid acts of Defendants GOMEZ and/or PO JOHN DOES, RIVERA suffered great mental anguish and violation of rights from then until now and he will continue to so suffer in the future having been greatly humiliated and mentally injured as a result of the foregoing acts of Defendants GOMEZ and/or PO JOHN DOES.

28. As a result of said baseless false and unlawful detainment and abuse of process, RIVERA has suffered continued emotional damage, including prolonged stress and anxiety, fear, and frustration, and other expenses incurred.

29. That by reason of the foregoing, Plaintiff demands judgment against Defendants in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR PLAINTIFF'S SECOND CAUSE OF ACTION
FOR FAILURE TO SUPERVISE (1983) AGAINST ALL DEFENDANTS

30. RIVERA repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

31. Defendants were responsible for supervising, overseeing, and controlling their subordinates in the NYPD.

32. Defendants failed to properly supervise, oversee, and control their subordinates in the NYPD resulting in the deprivation of Plaintiff's civil rights.

33. That, by reason of the foregoing, Plaintiff demands judgment against Defendants in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR PLAINTIFF'S THIRD CAUSE OF ACTION
AGAINST DEFENDANTS CITY AND NYPD (MONELL CLAIM)

34. RIVERA repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

35. Upon information and belief, it was the custom, policy, and practice of Defendants to unlawfully detain innocent individuals without reasonable suspicion in the hopes of discovering criminal activity during the stop to justify an arrest and to issue traffic tickets to cover-up the illegal detainment.

36. Employees of NYPD, such as the Individual Defendants in this action, were aware at all times alleged in this Complaint that their unconstitutional conduct would not be investigated or questioned, and that they would receive no reprimand or be punished for their conduct.

37. Employees of NYPD, such as the Individual Defendants in this action, were aware at all times alleged in this Complaint that their unconstitutional conduct would not be investigated or questioned, that they would receive no reprimand or be punished for their conduct, and, further, that they would be indemnified from civil liability regardless of the illegality or unconstitutionality of their actions.

38. By failing to supervise, train, and reprimand such Police Officers, CITY and NYPD caused the injuries to RIVERA through the actions and inactions of the Individual Defendants.

39. By maintaining a *defacto* policy of automatic indemnification, CITY and NYPD caused the injuries to RIVERA through the actions and inactions of the Individual Defendants.

40. Upon information and belief, it was the custom, policy, and practice of CITY and NYPD to authorize and permit certain Police Officers, including the Individual Defendants, to cause unlawful detentions.

41. Upon information and belief, it was the custom, policy, and practice of CITY and NYPD to encourage and cause Constitutional violations by the Police Officers employed by CITY and NYPD, including the violations of RIVERA'S Constitutional rights by the Individual Defendants.

42. CITY and NYPD'S failure to take action against its Police Officers involved in this incident, and in other similar incidents, was part of a custom, practice, and procedure of neglect and deliberate indifference that directly caused the injuries to RIVERA.

43. As authorized representatives of Defendant CITY and NYPD, the Police Officers' conduct of illegal detainments, seizure of detainees, and official misconduct, constituted a custom, policy, and practice which renders Defendants CITY and NYPD liable to RIVERA as a "Person" acting under the color of state law.

44. These customs, policies, and practices enforced by Defendants were the moving force, proximate cause, and/or affirmative link behind the conduct causing RIVERA'S injuries.

45. Defendants CITY and NYPD are therefore liable for violations of RIVERA'S Constitutional rights as caused by their employees, as described in more detail in the paragraphs herein, and RIVERA has suffered damages therefrom.

46. That by reason of the foregoing, Plaintiff demands judgment against Defendants in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have

jurisdiction.

AS AND FOR A FOURTH COUNT
42 U.S.C. § 1983 - FAILURE TO INTERVENE AGAINST
DEFENDANTS GOMEZ AND PO JOHN DOES

47. RIVERA repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

48. Defendants had an affirmative duty to intervene to prevent the violation of Plaintiff's Constitutional rights.

49. Defendants failed to intervene to protect Plaintiff from the egregious violation of his Constitutional rights, despite having a realistic opportunity to do so.

50. That, as a result of Defendants' conduct and failure to intervene, Plaintiff's Constitutional rights were violated.

51. Plaintiff has suffered damages as a result of Defendants' impermissible conduct.

52. That by reason of the foregoing, Plaintiff demands judgment against Defendants in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff ADRIAN RIVERA demands judgment against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY POLICE OFFICER G. GOMEZ, and NEW YORK CITY POLICE OFFICER JOHN DOES #1-10, in an amount to be determined at trial, but which exceeds the jurisdictional limits of all lower

courts, plus punitive damages, attorney's fees, costs, and disbursements, as well as any other relief this Court deems just and equitable.

Dated: Garden City, New York
June 4, 2024

Respectfully submitted,
THE RUSSELL FRIEDMAN LAW GROUP, LLP
Attorneys for Plaintiff

By: /s/ Pablo A. Fernandez
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ATTORNEY VERIFICATION

PABLO A. FERNANDEZ, an attorney duly admitted to the practice of law in the Courts of the State of New York affirms the following to be true under the penalties of perjury:

I am the attorney for Plaintiff, ADRIAN RIVERA, in the within action and I have read the foregoing Verified Complaint and know the contents thereof and the same is true to the knowledge of the affirmant, except as to the matters stated to be alleged upon information and belief and as to those matters I believe it to be true.

Affirmant further states that the reason why Plaintiff does not make this verification is that said Plaintiff resides in a County other than where affirmant has his office. That the grounds of affirmant's belief as to all matters not therein stated to be alleged upon his knowledge are investigations and information received by affirmant in the course of his duties as an attorney for said Plaintiff.

Dated: Garden City, New York
June 4, 2024

/s/Pablo A. Fernandez
PABLO A. FERNANDEZ